MUTUAL AGREEMENT TO ARBITRATE CLAIMS

JECHI, INC.

This Mutual Agreement to Arbitrate Claims (“Agreement”) is entered into by **JECHI, INC.**, a California corporation (“Company”), and the undersigned employee (“Employee”). It is a stand-alone agreement, separate from the Company’s Employee Handbook and any other policy, and is not affected by the Company’s right to revise Handbook policies.

1. Intent and mutual obligation

The Company and Employee mutually agree to resolve through final and binding arbitration all disputes covered by this Agreement, instead of in a court before a judge or jury. This Agreement is governed by the Federal Arbitration Act (FAA), 9 U.S.C. § 1 *et seq.*; if the FAA is held not to apply for any reason, the California Arbitration Act applies. The parties' mutual promise to arbitrate is the consideration for this Agreement.

2. Claims covered

Except as stated in Section 3, this Agreement applies to all disputes — past, present, or future — arising out of or relating to Employee's employment or its termination, whether brought by Employee against the Company or its owners, officers, directors, employees, or agents, or by the Company against Employee. Covered claims include, without limitation, claims for wages or other compensation; meal and rest periods; expense reimbursement; wrongful termination; breach of contract; tort claims; and claims of discrimination, harassment, or retaliation under the California Fair Employment and Housing Act, Title VII, the ADA, the ADEA, the California Labor Code, and other federal, state, or local laws.

3. Claims not covered

This Agreement does not apply to: (a) claims for workers' compensation, state disability insurance, or unemployment insurance benefits; (b) claims under a benefit plan that provides its own dispute-resolution procedure; (c) charges or complaints filed with an administrative agency (such as the EEOC, the California Civil Rights Department, the U.S. or California Department of Labor, or the National Labor Relations Board), which Employee remains free to file; and (d) any claim that, as a matter of law, may not be required to be arbitrated.

Sexual harassment and sexual assault. Consistent with the federal Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA), if a dispute is or relates to a sexual assault dispute or a sexual harassment dispute, Employee may elect to bring that dispute in court rather than in arbitration, and any pre-dispute waiver of that right will not be enforced.

4. Individual claims only; class and collective waiver

All covered claims must be brought in the parties' individual capacities, and not as a plaintiff or class member in any purported class, collective, or consolidated proceeding. The arbitrator has no authority to hear or arbitrate any class or collective claim. This class and collective action waiver is an integral, non-severable part of the agreement to arbitrate: if it is found unenforceable as to any claim, that class or collective claim shall proceed only in a court of competent jurisdiction, not in arbitration, while all other claims remain subject to arbitration.

5. Representative (PAGA) claims

To the maximum extent permitted by law, the parties waive the right to bring any claim on a representative basis, including a representative action under the California Private Attorneys General Act (PAGA). Any individual PAGA claim — a claim for penalties based on alleged Labor Code violations Employee personally suffered — shall be arbitrated on an individual basis under this Agreement. If the waiver of a non-individual or representative PAGA claim is found unenforceable, that representative portion is severed from this Agreement, shall be litigated in a court of competent jurisdiction, and shall be stayed pending completion of the individual arbitration; the remainder of this Agreement remains in full force.

6. Arbitrator and rules

The arbitration will be administered by JAMS before a single neutral arbitrator, under its employment arbitration rules in effect when the demand is filed (for JAMS, including the JAMS Employment Arbitration Minimum Standards). The parties will select the arbitrator by mutual agreement from the administrator's panel; if they cannot agree, the administrator's selection procedure applies. The arbitrator must be a retired judge or an attorney experienced in employment law.

7. Procedures, discovery, and remedies

The arbitration will afford each party adequate discovery, including the right to take depositions and obtain documents, subject to the arbitrator's authority to resolve discovery disputes. The arbitrator will apply the substantive law that would apply in court and may award any remedy that would be available in court, including statutory and punitive damages, injunctive relief, and attorneys' fees and costs where authorized by the law under which the claim is brought. The arbitrator will issue a written award stating the essential findings and conclusions on which it is based, subject to judicial review to the extent permitted by law.

8. Costs and fees

The Company will pay the arbitrator's fees and all costs unique to arbitration (including the administrator's fees) that Employee would not be required to bear if the claim were brought in court. Employee is responsible for no more than the amount Employee would pay to file the claim in court. Each party otherwise bears its own attorneys' fees and costs, except that the arbitrator may award attorneys' fees and costs to a party to the extent authorized by the statute or law under which a claim is brought (for example, California Labor Code § 1194 or the FEHA).

9. Informal resolution (optional, not a condition)

Before initiating arbitration, the parties are encouraged, but not required, to attempt in good faith to resolve the dispute informally. This step is not a condition to, and does not delay or limit, either party's right to arbitrate or to preserve a claim within the applicable limitation period.

10. Initiating arbitration; limitations; location

A party initiates arbitration by serving a written demand on the administrator, with a copy to the other party, within the limitation period that would apply to the claim in court. Unless the parties agree otherwise, the arbitration will take place in or near the county where Employee last worked for the Company.

11. Survival; at-will employment

This Agreement survives the end of Employee's employment. Nothing in this Agreement changes the at-will nature of employment or creates a contract of employment for any period; either the Company or Employee may end the employment relationship at any time, with or without cause or notice.

12. Severability and waiver

Except for the class and collective action waiver in Section 4 (which is non-severable as stated there), if any provision of this Agreement is found unenforceable, it will be severed or limited to the minimum extent necessary, and the remainder will be enforced. A party's failure to enforce a provision is not a waiver of the right to enforce it later.

13. Voluntary and knowing; entire agreement

Employee acknowledges having had the opportunity to read this Agreement and to consult an attorney of Employee's choice before signing. This Agreement is the entire agreement between the parties on the subject of arbitration and supersedes any prior agreement on that subject; it may be modified only by a writing signed by Employee and an officer of the Company. If any other document — including the Employee Handbook or any prior employment or arbitration agreement — conflicts with this Agreement on the subject of arbitration, this Agreement controls.

I UNDERSTAND THAT BY SIGNING THIS AGREEMENT, THE COMPANY AND I ARE EACH GIVING UP OUR RIGHT TO A TRIAL BY JURY AND AGREE TO RESOLVE COVERED DISPUTES THROUGH FINAL AND BINDING ARBITRATION ON AN INDIVIDUAL BASIS, EXCEPT AS STATED ABOVE.

EMPLOYEE SIGNATURE

By signing below, I acknowledge that I have read, understand, and voluntarily agree to this Mutual Arbitration Agreement.

Employee signatureDate

JECHI, INC. — by (printed name)Title

SignatureDate